

		Nigel Stobart, Kim Stobart, Brandon Livingood, and Rebecca Livingood. For the reasons set forth below, the court CONTINUES the motion to August 19, 2026, at 9:00 a.m. in this Department. The court is inclined to grant the motions. However, the motions set forth the hearing dates of August 19, 2026, August 26, 2026, and September 2, 2026, and there is nothing in the record showing that notice of the advanced hearing date of 6/17/26 was provided to Defendants. Accordingly, the court orders Moving Counsel to give notice of the new hearing date for the instant motions. The court also orders Moving Counsel to file and serve new proposed orders reflecting the new pretrial conference and trial dates in Paragraphs 7 and 9 of the Orders (MC-053). Moving counsel shall give notice of the continued hearing date, including to the clients and all other parties who have appeared in the action, in compliance with Code Civ. Proc. § 1005, and file the proof of service of the notice at least five court days before the continued hearing date. Moving counsel to give notice.
10	Jas Partnership vs. Convirgent Technologies LLC	TENTATIVE RULING: For the reasons set forth below, Defendant and Cross-Complainant Convergint Technologies LLC’s motion to continue trial is GRANTED. Trial is continued to April 5, 2027, at 9:00 a.m. in this Department. The pretrial conference is continued to April 2, 2027, at 9:00 a.m. in this Department. The discovery and motion deadlines are continued pursuant to Code Civ. Proc. § 2024.020. <u>Statement of Law</u> “A party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request for a continuance by a noticed motion or an ex parte application under the rules in chapter 4 of this division, with supporting declarations. The party must make the motion or application as soon as reasonably practical once the necessity for the

continuance is discovered.” (Cal. Rules of Court, rule 3.1332(b); *Reales Investment, LLC v. Johnson* (2020) 55 Cal.App.5th 463, 468.)

The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include:

- (1) The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;
- (2) The unavailability of a party because of death, illness, or other excusable circumstances;
- (3) The unavailability of trial counsel because of death, illness, or other excusable circumstances;
- (4) The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;
- (5) The addition of a new party if:
 - (A) The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or
 - (B) The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;
- (6) A party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or
- (7) A significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

(Cal. Rules of Court, rule 3.1332(c)).

In ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may include:

- (1) The proximity of the trial date;
- (2) Whether there was any previous continuance, extension of time, or delay of trial due to any party;
- (3) The length of the continuance requested;
- (4) The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;
- (5) The prejudice that parties or witnesses will suffer as a result of the continuance;
- (6) If the case is entitled to a preferential trial setting, the reasons for that status and whether the need for a continuance outweighs the need to avoid delay;
- (7) The court's calendar and the impact of granting a continuance on other pending trials;

- (8) Whether trial counsel is engaged in another trial;
- (9) Whether all parties have stipulated to a continuance;
- (10) Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and
- (11) Any other fact or circumstance relevant to the fair determination of the motion or application.

(Cal. Rules of Court, rule 3.1332(d).

Merits

The court finds that Convergent has shown good cause for a continuance for the trial date pursuant to Cal. Rules of Court, rule 3.1332(c). Convergent contends that it served its first sets of discovery, including special interrogatories, requests for production of documents, requests for admission and form interrogatories, on 10/22/25. (Decl. of Jackson, ¶ 2). After seeking several extensions, JAS served its written responses to Convergent's written discovery on 12/16/25. (Decl. of Jackson, ¶ 9). Convergent contends that JAS' responses are replete with baseless objections as JAS refuses to disclose any information regarding any of the critical issues in this case, including its unpermitted improvements and systems maintenance history. (Decl. of Jackson, ¶ 9). Convergent filed four motions to compel (which were sent to an informal discovery conference) and contends that it is unable to complete discovery, take depositions or file a motion for summary judgment.

JAS contests the basis for these discovery motions and contends that it produced over 2,000 documents and that Convergent's requests were poorly worded.

Nevertheless, the hearing date for the four motions is not until 7/2/26. Furthermore, this matter commenced 4/18/25, and this is the first request for a continuance.

JAS Partnership has not shown that it will be prejudiced as a result of the continuance.

Accordingly, the motion is GRANTED.

Convergent shall give notice.